

Supreme Court's recent decision in *Flowers Food, Inc., et al. v. Brock* (2026) 146 S.Ct. 1358 (No. 24-935) (*Flowers Food*).

The Court has reviewed Defendants' Status Report in 23CV001390 and Plaintiff's Status Report in 24CV002048. It appears to the Court that the United States Supreme Court's decision in *Flowers Food* confirms Plaintiffs' position, and the Court's inclination as expressed in its March 5, 2026 Minute Order in 24CV002048, at page 6, that Plaintiffs fall under the "engaged in foreign or interstate commerce" exemption under the FAA, section 1, and, therefore, the FAA does not apply to the instant matters. The remaining issues in the pending motions to compel arbitration appear to be Plaintiff's defenses to the validity and enforceability of the arbitration agreement (i.e., the CAA bars arbitration of Plaintiffs' claims, Defendant waived its right to arbitrate, and the agreement is unconscionable).

Based on the foregoing, the Court is inclined to direct further briefing on those remaining issues under the CAA and California law (not the FAA or Federal law). Counsel is required to appear to discuss the scope of, and schedule for, further briefing.

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Nick-O and Sons et al v. Rolando Herrera et al

24CV000022

DEMURRER TO PLAINTIFFS' SECOND AMENDED COMPLAINT FOR FINANCIAL ELDER ABUSE AND RELATED TORTS

TENTATIVE RULING: The demurrer is OVERRULED. Moving Defendants are granted 20 calendar days from entry of the instant ruling to answer the Second Amended Complaint.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

1. Nature of Demurrer

Defendants Rolando Herrera, Herrera Vineyard Leasing Company, LLC, Mi Sueño Winery, Inc., RREVPV, LLC dba Herrera Vineyard Management, Enterprise Wine Company, LLC, Rolando Herrera as Trustee of the Rolando and Lorena Herrera Family Trust, Lorena Herrera, and Lorena Herrera as Trustee of the Rolando and Lorena Herrera Family Trust's

(collectively, Moving Defendants) demur, pursuant to Code of Civil Procedure sections 430.10, subdivisions (b), (d), (e), (f), and, as applicable, (g), 430.30, and 430.50, and California Rules of Court, rule 3.1320, to Plaintiff's Second Amended Complaint for Financial Elder Abuse and Related Torts (SAC).

2. Procedural Background

Plaintiffs Nick-O and Sons, and Enina Orciuoli filed the original Complaint in this action on January 5, 2024. Through the Complaint, they asserted claims against Defendants Rolando Herrera (Mr. Herrera), Herrera Vineyard Leasing Company, LLC (HVLC), and Mi Sueño Winery, Inc. (Mi Sueño and collectively Original Defendants) for Financial Elder Abuse, Recission of Contract relating to alleged leases of real property, Interference with Contractual Relations, Declaratory Judgment, and Quiet Title.

On April 12, 2024, the Original Defendants demurred to the Complaint on the single grounds that Nick-O and Sons lacked standing to assert the claims. The Court overruled that demurrer by Order After Hearing filed May 24, 2024. Original Defendants filed an Answer to the Complaint on June 5, 2024.

On September 23, 2024, (with leave granted by the Court on September 12, 2024) Plaintiffs Nick-O and Sons (Nick-O), Enina Orciuoli (Ms. Orciuoli), and Angelo Orciuoli and Anthony Orciuoli, as Trustees of the Orciuoli Family Trust dated December 14, 2006 (Trust and collectively Plaintiffs), filed a First Amended Complaint (FAC). The FAC added a new Plaintiff (the Trust), and certain "clarifying" allegations, but asserted the same five claims against the same defendants.

On November 25, 2024, the Original Defendants filed an Answer to the FAC.

On April 14, 2026, (with leave granted by the Court by Minute Order of April 8, 2026) Plaintiffs filed the Second Amended Complaint (SAC). By the SAC, Plaintiffs reasserted the original five claims against the Original Defendants. They also named, as additional defendants, RREVPV, LLC, dba Herrera Vineyard Management (HVM); Enterprise Wine Company, LLC (EWC); Rolando Herrera in his capacity as Trustee of the Rolando and Lorena Herrera Family Trust, Dated February 22, 2007; Lorena Herrera, an individual (Ms. Herrera); Lorena Herrera as Trustee of the Rolando and Lorena Herrera Family Trust, Dated February 22, 2007 (Herrera Family Trust Trustees); First-Citizens Bank & Trust Company, individually and as parent of and successor to Silicon Valley Bank (First-Citizens); and All Persons Unknown, Claiming Any Legal or Equitable Right, Title, Estate, Lien, or Interest in the Properties Described in the Complaint Adverse to Plaintiffs' Title or Any Cloud on Plaintiffs' Title Thereto. Plaintiffs also asserted four novel claims sounding in: (1) breach of contract; (2) trespass; (3) conversion; and (4) fraudulent deceit.

Through the Notice of Motion, Moving Defendants clarify that "[t]his demurrer is directed to the SAC as a whole where the SAC uses collective party labels, global incorporation, undifferentiated alter-ego and agency allegations, and property-wide allegations in a manner that

prevents any defendant-specific, plaintiff-specific, property-specific, or instrument specific pleading analysis. It is also directed to each cause of action . . .” (Notice of Motion at 2:11-14.)

B. LEGAL BACKGROUND

A complaint must contain “facts constituting the cause of action.” (Code Civ. Proc., § 425.10, subd. (a)(1).) “The party against whom a complaint . . . has been filed may object, by demurrer . . . to the pleading on any one or more of the following grounds: . . . (b) The person who filed the pleading does not have the legal capacity to sue. . . . (d) There is a defect or misjoinder of parties. (e) The pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible. (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (Code Civ. Proc., § 430.10.)

C. LEGAL ANALYSIS

1. Moving Defendants’ “Global Pleading Defects” Arguments Fail

Moving Defendants first assert that the SAC suffers from a series of “Global Pleading Defects.” (See Support Memo at 4:19, *et. seq.*) These are presented by vague and sweeping generalizations and abstract assertions of pleading defect. As to each, Moving Defendants fail to persuade the Court that the SAC is defective.

A demurrer is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because “[a] demurrer tests only the legal sufficiency of the pleading...the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

Moreover, the general rule is that a complaint is sufficient if it alleges ultimate, as opposed to evidentiary, facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) “‘In order to plead a cause of action, the complaint must contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language.’ (Code. Civ. Proc., § 425.10, subd. (a).) . . . What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief. [Citations.]’ [Citation.]’ It has been consistently held that “‘a plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action. [Citation.] . . . ‘The particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed

information that can be conveniently provided by the plaintiff; less particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the plaintiff. [Citation.]’ . . . There is no need to require specificity in the pleadings because ‘modern discovery procedures necessarily affect the amount of detail that should be required in a pleading.’ [Citation.]’ [Citation.]” (*Doheny Park Terrace Homeowners Association, Inc. v. Truck Insurance Exchange* (2005) 132 Cal.App.4th 1076, 1098-1099 (*Doheny Park*).)

Taken together, the forgoing authority counsels that ultimate facts, properly pled, and facts that may reasonably be inferred therefrom are to be indulged in favor of the complaining party.

The demurring party has the burden of overcoming that indulgence and establishing why the facts alleged do not support a cause of action. To this end, “The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Rules of Court, rule 3.1113, subd. (b).) Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide.” (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 934 (*Quantum Cooking Concepts*).)

Therefore, it is not sufficient for a demurring party to simply contend that a complaint or cause of action fails to allege sufficient facts and/or that the allegations consist of conclusions of law entirely in the abstract. Rather, it is the demurring party’s responsibility to identify the shortcoming in the pleadings and/or identify the allegations that it contends are conclusions of law.

a. *Plaintiff Standing, Capacity, and Property Interest*

Moving Defendants contend that “Trust claims belong to trustees, partnership claims to the Partnership or its authorized representative, and Mauds [*sic*] claims must distinguish the Trust’s former fee ownership from Enina’s 24.2-acre life estate. [Citations.] The SAC pleads those distinctions, then ignores them.” (Support Memo at 5:1-4.) Moving Defendants provide no further discussion, explanation, and no citation to the SAC in support of the contention.

The Court finds the contention vague, ambiguous, overly abstract. The Court is unable to reasonably construe it in any manner that articulates a specific defect in the pleading of the SAC.

The Court further notes that the Original Defendants asserted, through their demurrer to the Complaint, that the original five claims failed on grounds that Nick-O lacked standing to assert them. This argument was rejected by the Court. (See Order After Hearing filed May 24, 2024.) Pursuant to Code of Civil Procedure section 1008, the Court is “foreclosed from rendering a new determination on the viability of [the subject claims based on the same grounds for demurrer] unless some new facts or circumstances [are] brought to [its] attention.” (*Bennett v. Suncloud* (1997) 56 Cal.App.4th 91, 97.)

b. *Collective Defendant Pleading*

Moving Defendants assert that “[t]he SAC must plead what each defendant did, in what capacity, as to which property, instrument, plaintiff, and injury.” (Support Memo at 5:10-11.)

First, as noted above, “[w]hat is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief. [Citations.]’ [Citation.]’ It has been consistently held that “a plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action. [Citation.] . . . ‘The particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed information that can be conveniently provided by the plaintiff; less particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the plaintiff. [Citation.]’ . . . There is no need to require specificity in the pleadings because ‘modern discovery procedures necessarily affect the amount of detail that should be required in a pleading.’ [Citation.]’ [Citation.]” (*Doheny Park, supra*, 132 Cal.App.4th at 1098-1099.) None of the authority cited by Moving Defendants suggest otherwise. (See Support Memo at 5:12-14.)

Moreover, the Court finds that, even independent of the agency and alter-ego allegations, the SAC alleges “what each defendant did, in what capacity, as to which property instrument, plaintiff, and injury” in significant factual detail. (See, e.g., *id.* at ¶¶ 5-13, 24-48, and 56-57.) The Court finds nothing improper in Plaintiffs alleging that certain acts were undertaken by “the Herrera Defendants” collectively, or that these defendants, collectively, are liable for certain acts undertaken by one or more individual defendants.

c. *Document Theories*

Moving Defendants next contend that “[t]he SAC repeatedly calls agreements worse, unfair, void, fraudulent, unconscionable, or unsupported by adequate consideration. Those adjectives do not identify a breached provision, statutory trigger, representation, disclosure duty, exceeded lease term, adverse title claim, converted personal property, or causal sequence.” (Support Memo at 5:17-20.) Perhaps. However, the inclusion of such adjectives do not render an otherwise adequately pled claim defective. The Court finds no defect in the SAC based on these allegations.

d. *Alter Ego Allegations*

Moving Defendants argue that “Plaintiffs use alter ego in the wrong direction, attempting to impose Rolando’s alleged acts on non-signatory entities, trustee capacities, and trust-related defendants for every lease, communication, bank document, entry, conversion item, and remedy.” (Support Memo at 6:6-8.)

Moving Defendants fail, however, to cite to or discuss any specific allegations of the SAC that they contend assert alter ego in this “wrong direction.” It is not the Court’s “obligation

to comb the record and the law for factual and legal support that a party has failed to identify or provide.” (*Quantum Cooking Concepts, supra*, 197 Cal.App.4th at 934.)

Moreover, Moving Defendants fail to suggest how allegations of alter ego “in the wrong direction” renders the SAC defective as to any cause of action. “A demurrer does not lie to a portion of a cause of action.” (*PHII, Inc. v. Super. Ct.* (1995) 33 Cal.App.4th 1680, 1682; see also *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39 [“If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer”].)

Moving Defendants next assert that “[t]his case requires transaction-specific facts showing that each defendant executed, assumed, controlled, participated in, or directly benefited from the specific transaction, not a ‘web’ of related entities treated as one defendant. [Citation.] The SAC recites alter-ego vocabulary but does not tie separateness abuse to any lease, bank document, entry, conversion item, fraud omission, or adverse claim.” (Support Memo at 6:10-14; see also *id.* at 7:12-14 [“Any derivative theory must be pleaded transaction by transaction, defendant by defendant, and claim by claim”], and 7:6-8 [“At minimum, the Court should disregard alter-ego and derivative-liability conclusions when analyzing each cause of action”].)

Again, however, a complaint is generally sufficient if it alleges ultimate, as opposed to evidentiary, facts. (See *Doe v. City of Los Angeles, supra*, 42 Cal.4th at 550.) None of the authority cited by Moving Defendants suggests that alter ego liability is subject to a heightened pleading standard. Rather, the opinion in *Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221 (cited by Moving Defendants) confirms that the general rule of pleading applies to alter ego theories of liability. “Defendants argue that Rutherford failed to allege specific facts to support an alter ego theory, but Rutherford was required to allege only ‘ultimate rather than evidentiary facts.’ [Citation.] Moreover, the ‘less particularity [of pleading] is required where the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff,’ which certainly is the case here.” (*Id.* at 236.)

The Court finds that Plaintiffs have, in the SAC, adequately pled ultimate facts sufficient to support their alter ego theory of liability as it relates to each of the claims asserted through the SAC. (See SAC at ¶¶ 17-19.) Moving Defendants fail to persuade the Court that any further specificity is required. Discovery is available to unearth the factual details that Moving Defendants seek. (*Doheny Park, supra*, 132 Cal.App.4th at 1098-1099.)

e. Agency Allegations

Moving Defendants advance the same arguments as to Plaintiffs’ agency allegations. (See, e.g., Support Memo at 7:16, *et. seq.* [“The SAC’s agency allegations fail for the same reason”].) The arguments fail for the reasons set forth above: none of the authority cited by Moving Defendants suggests that agency liability is subject to a heightened pleading standard; the SAC contains allegations of ultimate fact sufficient to support Plaintiffs’ agency theory of liability as it relates to each of the claims asserted through the SAC; and discovery is available to unearth the factual details sought by Moving Defendants.

2. Moving Defendants Fail to Persuade the Court that Allegations of the SAC Clearly Demonstrate that One or More Claims is Necessarily Time Barred

Although not entirely clear, Moving Defendants appear to argue that certain claims against “the newly added defendants linked to the 2021 lease-replacement transactions” are time barred. (See Support Memo at 8:1-22.)

A general demurrer will lie “where the complaint has included allegations that clearly disclose some defense or bar to recovery.” (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) Where a plaintiff has pled facts that appear to demonstrate an affirmative defense to the claims, they must then “plead around” the defense by alleging facts sufficient to avoid the apparent defense. (See *Gentry v. eBay Inc.* (2002) 99 Cal.App.4th 816, 825.) However, “[a] demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]’ [Citation.]” (*Geneva Towers Ltd. Partnership v. City and County of San Francisco* (2003) 29 Cal.4th 769, 781.)

Moving Defendants entire discussion on the issue, relating to the “2021 lease-replacement transactions” is “[t]hat rule is decisive for the newly added defendants linked to the 2021 lease-replacement transactions. The SAC tries to extend lease-related allegations from Rolando/HVL to Lorena, MSW, HVM/RREVPV, EWC, and trustee-capacity defendants based on 2021 conduct. Plaintiffs must plead timely facts for each defendant including a valid basis for relation back, which is required because amendments adding new defendants ordinarily do not relate back.” (Support Memo at 8:9-13.) Moving Defendants also argue that “[t]he Old Adobe recorded-instrument allegations raise a separate notice problem. The SAC challenges July-August 2022 recorded transactions but treats 2025 title review or subpoena returns as first discovery. Recordation defeats that theory as it prevents plaintiffs from postponing accrual where the facts were publicly recorded and reasonably discoverable earlier.” (Support Memo at 8:17-20.)

The Court finds that the foregoing is insufficient to support Moving Defendants’ demurrer. Moving Defendants fail to cite any allegation in the SAC in support of either argument. Moving Defendants also fail to identify specific claims that they contend are clearly barred. The Court acknowledges allegations in the SAC regarding 2021 leasing transactions and allegations relating to the leasing of the Old Adobe Property. However, as discussed above, it is not the Court’s obligation to pour over the 50-page SAC in an effort to determine whether one or more claim(s) is/are necessarily and clearly barred by one or more unidentified allegation(s). (See *Quantum Cooking Concepts, supra*, 197 Cal.App.4th 934.)

3. Claim-Specific Arguments

a. *The SAC Adequately Alleges Elder Abuse*

“Financial abuse occurs when a person or entity ‘[t]akes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with

intent to defraud’ or ‘assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud.’ [Citation.]” (*Arace v. Medico Investments, LLC* (2020) 48 Cal.App.5th 977, 982.)

Moving Defendants explicitly acknowledge allegations in the SAC of ultimate facts supporting the foregoing elements. (See Support Memo at 9:3-7.) Moving Defendants complaint that the specific “phrasing” used in the SAC “does not identify the elder-owner, defendant, property, statutory taking or assistance, or elder-abuse injury distinct from contract and title disputes.” (*Id.* at 9:7-9.) This argument simply ignores the scores of paragraphs of the SAC containing such allegations. (See, *e.g.*, SAC at ¶¶ 1-57.)

Moving Defendants next contend that “[t]he undue-influence allegations focus on Rolando and do not plead undue influence, assistance, knowledge, authority, or participation by HVL, MSW, HVM/RREVPV, EWC, Lorena, the Herrera Family Trust, the bank, or Does.” (Support Memo at 9:9-11.)

Again, all that is required is that Plaintiffs allege ultimate facts. The Court finds sufficient allegations of the foregoing in paragraphs 39-51, and 61. As discussed above, the Court finds nothing improper in Plaintiffs alleging acts by defendants collectively. Moving Defendants fail to acknowledge or discuss the allegations of these paragraphs, and therefore fail to persuade the Court that they are insufficient to support the claim or claims for elder abuse.

b. Moving Defendants Fail to Persuade the Court that the Rescission Claim is Insufficiently Pled

Moving Defendants argue that “[t]he SAC . . . seeks rescission of nearly every lease, water-well, rent-assignment, consent, deed-of-trust, recorded-document, fixture, improvement, crop, vine, and related interest. (SAC, pp. 28:5-30:12, 31:8-32:16.) It pleads mistake, duress, menace, fraud, undue influence, and inadequate consideration in grouped form. (SAC, pp. 28:18-30:21.) That is not contract-specific rescission.” (Support Memo at 9:23-26.)

Moving Defendants fail to articulate specifically how the claims for Recission of the various contracts fall short based on the authority cited in this section of their brief. They fail to present authority suggesting that Rescission claims are subject to a heightened pleading standard. The Court finds that those allegations of the SAC cited by Moving Defendants are sufficient to put Moving Defendants on notice regarding the nature of Plaintiffs’ claims. To the extent that Moving Defendants, here, renew their arguments that allegations of acts by collective groups of defendants are improper, they fail to articulate how such collective allegations render these specific claims defective.

c. Moving Defendants Fail to Persuade the Court that the Interference with Contractual Relations Claim is Insufficiently Pled

Moving Defendants assert that Plaintiffs fail to “plead each contract’s material terms, the plaintiff with enforcement rights, the defendant who knew of it, the act meant to induce breach or disruption, the breach, disruption date, or contract-specific damages. Nor does it reconcile the

theory with signed terminations, replacement leases, Lopez rent-assignment documents, and Mauds instruments.” (Support Memo at 10:16-20.)

Moving Defendants fail to articulate specifically how the claims for Interference with Contractual Relations fall short based on the authority cited in this section of their brief. They fail to present authority suggesting that such claims are subject to a heightened pleading standard. The Court finds that the allegations of the SAC are sufficient to put Moving Defendants on notice regarding the nature of Plaintiffs’ claims. To the extent that Moving Defendants, here, renew their arguments that allegations of acts by collective groups of defendants are improper, they fail to articulate how such collective allegations render these specific claims defective.

d. *Moving Defendants Fail to Persuade the Court that the Declaratory Relief Claim is Insufficiently Pled*

Moving Defendants argue that the SAC “does not identify with whom each present controversy exists.” (Support Memo at 11:8-9.) The Court finds that it does. (See SAC at ¶ 102 [“There is an actual controversy among and between the Orciuoli Family on the one hand, and the Defendants on the other as to the present and future validity of these above-described agreements”].)

Moving Defendants fail to articulate specifically how the claims for Declaratory Relief fall short based on the authority cited in this section of their brief. They fail to present authority suggesting that Declaratory Relief claims are subject to a heightened pleading standard. The Court finds that the allegations of the SAC are sufficient to put Moving Defendants on notice regarding the nature of Plaintiffs’ claims. To the extent that Moving Defendants, here, renew their arguments that allegations of acts by collective groups of defendants are improper, they fail to articulate how such collective allegations render these specific claims defective.

e. *Moving Defendants Fail to Persuade the Court that the Quiet Title Claim is Insufficiently Pled*

Moving Defendants argue that “Code of Civil Procedure section 761.020 requires a verified quiet-title complaint to include a property description, plaintiff’s title and basis of title, adverse claims, the date as of which determination is sought, and a prayer for determination of title. (Code Civ. Proc., § 761.020.) The SAC cites those elements but does not plead them with property and party precision. (SAC, pp. 40:8-41:5.)” (Support Memo at 11:18-21 citing SAC at 40:8-41:5.)

As Plaintiffs note in their Opposition, Moving Defendants simply ignore the allegations of paragraphs 20-22, 25-37, and 45-50 of the SAC, all of which are incorporated into the Quiet Title Claim by paragraph 104. Moving Defendants’ failure to acknowledge or address these paragraphs undermines the argument that the Quiet Title Claim is inadequately pled. It is not the Court’s obligation to review the voluminous allegations of these paragraphs in an effort to find support for Moving Defendants’ arguments. (See *Quantum Cooking Concepts, supra*, 197 Cal.App.4th at 934.)

Moving Defendants specifically argue that “For Old Adobe, Plaintiffs must identify the specific recorded adverse claim and defendant asserting it.” (Support Memo at 12:1-2.) They fail to acknowledge or address the many allegations of paragraphs 32, 34, 38, 42, 45, and 49 that relate to these subjects. Moving Defendants specifically argue that “For each vineyard lease, they must identify the leasehold claimant and plaintiff-titleholder.” (Support Memo at 12:2-3.) They fail to acknowledge or address the many allegations of paragraphs 20-37 relating to these subjects.

Moving Defendants assert that “[f]or Mauds, they must distinguish any pre-sale Trust claim from Enina’s alleged post-sale life estate.” (Support Memo at 12:3-4.) The assertion is vague and ambiguous. It is not clear, to the Court, how it supports Moving Defendants’ argument that the Quiet Title Claim is defectively pled. Moreover, Moving Defendants fail to acknowledge or address the many allegations of paragraphs 22, and 35-37 relating to these subjects.

Moving Defendants argue that “although the SAC purports to be verified, Angelo – not claimant Enina – executes the verification, without establishing Enina’s inability to verify or Angelo’s direct personal knowledge. That failure and ineffective hybrid of hearsay and ‘information and belief’ cannot support quiet title.” (Support Memo at 12:6-9.)

“In all cases of a verification of a pleading, the affidavit of the party shall state that the same is true of his own knowledge, except as to the matters which are therein stated on his or her information or belief, and as to those matters that he or she believes it to be true; and where a pleading is verified, it shall be by the affidavit of a party . . .” (Code Civ. Proc., § 446, subd. (a).)

Angelo Orciuoli’s Verification states, “ I am a Co-Trustee of the Orciuoli Family Trust dated December 14, 2006, . . . Plaintiff in the above-entitled action. I am also attorney-in-fact for legal claims and litigation for Enina Orciuoli, a party to this action, and am authorized to make this verification on her behalf. I make this verification on behalf of the Orciuoli Trust, and on behalf of Enina Orciuoli, individually, and as successor-in-interest to decedent Nicola Orciuoli. I have read Plaintiffs’ SECOND AMENDED COMPLAINT FOR FINANCIAL ELDER ABUSE AND RELATED TORTS and know the contents thereof. The same is true and correct of my own personal knowledge, except as to those matters stated on information and belief, and as to those matters, I believe them to be true.” (SAC at p. 51.)

Moving Defendants fail to acknowledge or address the foregoing language of Mr. Orciuoli’s Verification Declaration. It appears to wholly undermine Moving Defendants’ arguments regarding the sufficiency of the verification of the SAC to support the Quiet Title claims.

f. Moving Defendants Fail to Persuade the Court that the Breach of Contract Claim is Insufficiently Pled

Moving Defendants contend that “[t]he SAC alleges that Plaintiffs/predecessors entered leases or related contracts with Rolando, HVL, MSW, HVM/RREVPV, EWC, Rolando as

trustee, Lorena individually, and as trustee, but does not identify which defendant was party to which contract.” (Support Memo at 12:16-18.) The Court finds that the allegations of paragraph 110 are sufficient allegations of the parties to the subject contracts.

Moving Defendants next argue that “The pleading also contradicts attached documents.” (Support Memo at 12:19.) They fail, however, to cite to a single example of such inconsistency.

The Court is unable to meaningfully interpret the remainder of the arguments asserted in this section of Moving Defendants’ Support Memo.

g. Moving Defendants Fail to Persuade the Court that the Breach of Contract Claim is Insufficiently Pled

Moving Defendants appear to suggest that the SAC contains fatally inconsistent allegations regarding ownership of the subject real property. (See Support Memo at 13:9-13.) The Court finds nothing improper in Plaintiffs’ allegations at the cited paragraphs of the SAC, and nothing therein that constitutes a defect in the pleading of their trespass cause of action.

Moving Defendants then contend, without discussion or citation to authority that the SAC must contain additional factual allegations. (See Support Memo at 13:13-17.) Again, however, Moving Defendants fail to suggest that a heightened pleading standard is required for a trespass claim. The Court finds that the SAC contains allegations sufficient to put Moving Defendants on notice regarding the nature of the trespass claims.

h. Moving Defendants Fail to Persuade the Court that the Conversion Claim is Insufficiently Pled

Moving Defendants argue that conversion “generally does not lie for real property, leasehold interests, title interests, contract rights or general economic expectations.” (Support Memo at 24-25.) Perhaps, but Plaintiffs allege that “the Herrera Defendants and their agents . . . removed and/or demolished structures, fixtures, and improvements on the Orciuoli Lands, thereby substantially interfering with the Orciuoli Family’s property rights in said items.” (SAC at ¶ 132.) “All that is necessary as against a general demurrer is to plead facts entitling the plaintiff to some relief.” (*Tristram v. Marques* (1931) 117 Cal.App. 393, 397.)

Moving Defendants then contend, without discussion or citation to authority that the SAC must contain additional factual allegations. (See Support Memo at 14:3-7.) Again, however, Moving Defendants fail to suggest that a heightened pleading standard is required for a trespass claim. The Court finds that the SAC contains allegations sufficient to put Moving Defendants on notice regarding the nature of the trespass claims.

i. Moving Defendants Fail to Persuade the Court that the Fraudulent Concealment Claim is Insufficiently Pled

Moving Defendants contend that the Fraudulent Concealment Claim is insufficient pled because, “[i]t does not identify which defendant concealed which fact, which communication

contained a partial disclosure, who received it, which plaintiff was unaware, what the plaintiff would have done differently, or why the facts were inaccessible given recorded, attached, referenced, and leasehold-financing documents.” (Support Memo at 14:26-15:1.)

The Court finds that the SAC contains allegations that *every defendant* concealed the subject facts from each of the Plaintiffs. (See SAC at 138-139.) While this global allegation, without more, might be insufficient, the Court finds that the significant, detailed allegations set forth in paragraphs 38 and 45-50 provide ample detail to satisfy the heightened pleading standard regarding the fraudulent concealment claim.

D. CONCLUSION

As discussed above, Moving Defendants fail to persuade the Court that Plaintiffs’ allegations are insufficient to state one or more of the purported claims. For this reason, the demurrer is OVERRULED.

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Bright Power, Inc. v. Accelerant National Insurance Company et al 24CV002174

DEFENDANTS BLUE SKY UTILITY LLC AND BLUE SKY UTILITY 2021 IV LLC’S
DEMURRER TO PLAINTIFF BRIGHT POWER, INC.’S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. As the only claim remaining in the action is stayed (see Minute Order of March 19, 2026) the Clerk is directed to change the Case Management Conference, scheduled for November 19, 2026, to a Status Conference re: Stay.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendants Blue Sky Utility LLC and Blue Sky Utility 2021 IV LLC (collectively Moving Defendants) demur, pursuant to California Code of Civil Procedure, sections 430.10, subdivisions (c) and (e), 426.30, subdivision (a), and 430.30, subdivision (a), to the First Amended Complaint (FAC) filed by Plaintiff Bright Power, Inc (BPI).¹ The FAC asserts a single cause for foreclosure on a Mechanic’s Release Bond. While the Notice of Demur asserts that the demurrer is made on three grounds, only one is addressed through the supporting memorandum

¹ All subsequent statutory references herein are to the Code of Civil Procedure unless otherwise noted.